DV-140 Child Custody and Visitation Order

Case Number:

This form is attached to *(check one):* ☐ Form DV-110 ☐ Form DV-130 ☐ Form DV-310

1 Name of Protected Person: _____

Relationship to children: ☐ Parent ☐ Legal Guardian ☐ Other *(describe):* _____

2 Name of Restrained Person: _____

Relationship to children: ☐ Parent ☐ Legal Guardian ☐ Other *(describe):* _____

3 ☐ Children Under 18 Years Old

a. Name: _____ Date of birth: _____

b. Name: _____ Date of birth: _____

c. Name: _____ Date of birth: _____

d. Name: _____ Date of birth: _____

☐ (Check here if you have more children to list. On a separate piece of paper write "DV-140, Children" at the top and attach it to this form.)

4 ☐ No Travel With Children Without Permission

☐ Person in 1 ☐ Person in 2 ☐ Other *(name):* _____

must have written permission from the other parent, or a court order, to take the children outside of:

a. ☐ County of *(list):* _____

b. ☐ State of California

c. ☐ United States

d. ☐ Other place(s) *(list):* _____

This is a Court Order.

5 ☐ Stop Access to Children's School, Health, and Other Information

a. The person in 2 must not access or have access to the records or information for:

☐ All the children listed in 3.

☐ Only the children listed here *(names):* _____

b. From the following *(check all that apply):*

☐ Medical, dental, and mental health providers

☐ School and daycare providers

☐ Extracurricular activity providers (including summer camps and sports teams)

☐ Child's employers (including volunteer and unpaid positions)

☐ Other *(describe):* _____

! If you are a provider listed above, you must not release information or records regarding the children listed in 5a to the person in 2.

6 ☐ Judge's Decision on Request for Orders to Prevent Child Abduction *(attach form DV-145)*

7 ☐ Child Custody

a. Legal Custody *(The person who makes decisions about the child's health, education, and welfare.)*

☐ Sole to Person in 1

☐ Sole to Person in 2

☐ Jointly (shared) by persons in 1 and 2

☐ Other *(describe):* _____

b. Physical Custody *(The person who the child regularly lives with.)*

☐ Sole to Person in 1

☐ Sole to Person in 2

☐ Jointly (shared) by persons in 1 and 2

☐ Other *(describe):* _____

Visitation (Parenting Time) With Children *(See 8–15.)*

8 ☐ Person in 2 must have no visitation with the children in 3 until further order of the court.

(If this form is attached to form DV-110, *Temporary Restraining Order*, this means that the judge has stopped your right to visit with your children temporarily. If you do not agree with this order, attend your court hearing.)

This is a Court Order.

9 ☐ Professional Supervised (Monitored) Visits With Children

a. Person to be supervised: ☐ Person in 1 ☐ Person in 2

b. Professional provider to supervise visits *(check 1, 2, or 3):*

(1) ☐ Chosen provider: _____ Telephone: _____

Address *(if known):* _____

If the chosen provider cannot provide services, parties must use the alternate provider.

Alternate provider: _____ Telephone: _____

Address *(if known):* _____

Person in 1 must contact chosen provider by *(date):* _____

Person in 2 must contact chosen provider by *(date):* _____

(2) ☐ A list of providers *(check one):*

☐ is attached to this order.

☐ given in court to ☐ Person in 1 ☐ Person in 2 .

☐ Person in 1 ☐ Person in 2 must choose and contact a provider by *(date):* _____

(3) ☐ Other: _____

_____

c. Frequency of visits *(check one):*

☐ Once a week, for *(number of hours):* _____ each visit.

☐ Twice a week, for *(number of hours):* _____ each visit.

☐ Other *(describe):* _____

d. Fees paid by: Person in 1 _____ % Person in 2 _____ % Other _____ _____ %

e. Visits must be:

☐ In person at a safe location.

☐ Virtual (not in person). *(Before a provider is chosen, confirm that the provider offers virtual visits.)*

☐ Other: _____

This is a Court Order.

10 ☐ Nonprofessional Supervised (Monitored) Visits With Children

a. Person to be supervised: ☐ Person in 1 ☐ Person in 2

b. Nonprofessional provider (person) to supervise visits

Name: _____ Relationship to child: _____

Address *(if known)*: _____ Telephone *(if known)*: _____

c. Schedule for visits *(check one)*:

☐ Follow the Visitation Plan listed in 13.

☐ Other schedule *(give a detailed schedule)*: _____

_____

d. Location of visits:

☐ In person at a safe location *(give location)*: _____

☐ Virtual (not in person). *(Provider, child, and visiting parent may need access to internet.)*

☐ Other: _____

(For more information on safe locations and virtual visits, go to selfhelp.courts.ca.gov/guide-supervised-visitation.)

11 ☐ Supervised Exchanges (Drop-Off and Pick-up of Children)

(Complete this item and go to 12 to describe visitation plan.)

a. Person to be supervised: ☐ Person in 1 ☐ Person in 2

b. Provider (Person) to Supervise Exchanges

(1) ☐ Professional Provider

Name of provider *(if known)*: _____

Address *(if known)*: _____

Telephone *(if known)*: _____

Fees paid by: Person in 1 ____ % Person in 2 ____ % Other _____ ____ %

Person in 1 must contact provider by *(date)*: _____

Person in 2 must contact provider by *(date)*: _____

Location of exchanges to be decided by provider.

(2) ☐ Nonprofessional Provider

Name: _____ Relationship to child: _____

Address *(if known)*: _____

Telephone *(if known)*: _____

Safe location for exchanges: _____

(For more information on safe locations, go to selfhelp.courts.ca.gov/guide-supervised-visitation.*)*

This is a Court Order.

Case Number:

12 ☐ Visits With No Supervision (Unmonitored)

a. ☐ Person in 1 ☐ Person in 2 will visit with the children listed in 3

b. Visits must be:

☐ In person

☐ Virtual *(not in person) (Child and visiting parent may need access to the internet. For more information on virtual visits, go to* selfhelp.courts.ca.gov/domestic-violence-child-custody*.)*

☐ Other: _____

c. The visitation plan is *(check one):*

☐ Listed in 13.

☐ Described below:

_____

_____

_____

_____

13 ☐ Visitation Plan for Person in 2

	Time	Visit must be virtual	Person to bring children to and from visit *(or make child available for virtual visit)*	Location of drop-off/pick-up
Monday	Start: End, if applies:	☐		
Tuesday	Start: End, if applies:	☐		
Wednesday	Start: End, if applies:	☐		
Thursday	Start: End, if applies:	☐		
Friday	Start: End, if applies:	☐		
Saturday	Start: End, if applies:	☐		
Sunday	Start: End, if applies:	☐		

Follow the plan listed above *(check one):*

☐ Every week ☐ Every other week ☐ Other _____

Start date for visits *(month, day, year):* _____

This is a Court Order.

14 Mandatory Findings

(Findings required under Family Code sections 3011, 3044, and 3100.)

a. ☐ No findings required by law

b. ☐ Findings required by law

(1) ☐ The court has made the required findings. The court's reasons are in writing *(check one):*

☐ On form DV-150, *Mandatory Findings for Child Custody and Visitation Order*.

☐ Other: _____

(2) ☐ The court has made the required findings. The court's reasons were recorded *(check all that apply):*

☐ In a minute order ☐ By a court reporter ☐ Other: _____

15 ☐ Other Orders

Describe additional orders in the space below or use a separate attachment (e.g., FL-341(C), *Children's Holiday Schedule Attachment*).

_____

_____

16 ☐ Criminal Protective Order

List any criminal protective order protecting the person in 1 or any child in 3 from the person in 2.

Case number: _____ County: _____

Case number: _____ County: _____

(*If a criminal protective order is in effect, law enforcement must follow the priority of enforcement on form DV-110 or DV-130.*)

17 Country of Habitual Residence

The country of habitual residence of the child or children in this case is *(check one):*

☐ The United States,

☐ Other *(name of country):* _____ .

18 Jurisdiction and Notice

This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act (part 3 of the California Family Code starting with section 3400). The responding party was given notice consistent with the laws of the State of California.

19 Penalties for Violating This Order

If you violate this order, you may be subject to civil or criminal penalties, or both.

This is a Court Order.

For your protection and privacy, please press the Clear button after you have printed the form.

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